

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ethan Waterman	Team: Squad #10	CCRB Case #: 202006750	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/20/2020 4:00 PM	Location of Incident: Osborn Street and Sutter Avenue	18 Mo. SOL 5/4/2022	Precinct: 73		
Date/Time CV Reported Sun, 09/20/2020 4:49 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/08/2020 1:25 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Volodymyr Burdeynny	14915	954580	PSA 2

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Safraz Jailall	01921	953994	PSA 2

Officer(s)	Allegation	Investigator Recommendation
A . POM Volodymyr Burdeynny	Discourtesy: Police Officer Volodymyr Burdeynny spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Volodymyr Burdeynny	Abuse: Police Officer Volodymyr Burdeynny questioned § 87(2)(b)	B . Exonerated
C . POM Volodymyr Burdeynny	Abuse: Police Officer Volodymyr Burdeynny refused to provide his name to § 87(2)(b)	C . Unfounded
D . POM Volodymyr Burdeynny	Abuse: Police Officer Volodymyr Burdeynny refused to provide his shield number to § 87(2)(b)	D . Unfounded
E . POM Volodymyr Burdeynny	Discourtesy: Police Officer Volodymyr Burdeynny spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . POM Volodymyr Burdeynny	Discourtesy: Police Officer Volodymyr Burdeynny gestured discourteously toward § 87(2)(b)	F . Unsubstantiated

Case Summary

On September 20, 2020, § 87(2)(b) called IAB and filed this complaint. The CCRB received this complaint on October 8, 2020.

On September 20, 2020, at approximately 4:00 p.m., § 87(2)(b) stopped his vehicle in front of a fire hydrant near the corner of Osborn Street and Sutter Avenue in Brooklyn. Police Officer Volodymyr Burdeynny allegedly twice-told § 87(2)(b) “You can’t fucking sit on the johnny pump” (**Allegation A: Discourtesy – unsubstantiated**). PO Burdeynny then ordered § 87(2)(b) to provide his identification (**Allegation B: Abuse of Authority – exonerated**) and allegedly refused to provide his name and shield number upon § 87(2)(b)’s request (**Allegations C and D: Abuse of Authority – unfounded**). PO Burdeynny allegedly said, “Fuck you” to § 87(2)(b) (**Allegation E: Discourtesy – unsubstantiated**). Minutes later, PO Burdeynny allegedly raised his middle finger at § 87(2)(b) in response to § 87(2)(b) asking for PO Burdeynny’s shield number (**Allegation F: Discourtesy – unfounded**).

No summonses or arrests resulted from this incident.

The investigation received body-worn camera (BWC) footage regarding this incident, the relevant portions of which are discussed below.

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Volodymyr Burdeynny spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) said (BR 01) that on September 20, 2020, at approximately 4:00 p.m., he drove his blue 2008 Infiniti G35 sedan east on Sutter Avenue, towards the intersection with Osborn Street in Brooklyn. § 87(2)(b) stopped his vehicle at the intersection, as the traffic light was red. Upon stopping at the intersection, § 87(2)(b) saw a friend of his crossing Sutter Avenue. Once the light turned green, § 87(2)(b) drove forward and stopped in the crosswalk and yelled out the window to his friend. § 87(2)(b) and this friend spoke for approximately two to three minutes. After speaking with his friend for a couple minutes, a marked white and blue police SUV pulled up after driving westbound on Sutter Avenue towards the intersection with Osborn Street. PO Burdeynny pulled up beside § 87(2)(b)’s vehicle and said, “Does the light not apply to you?” § 87(2)(b) said, “Excuse me?” in response. PO Burdeynny claimed that § 87(2)(b) ran a red light. § 87(2)(b) denied this and said that he had waited for the light to turn green and had only stopped in the crosswalk to talk with his friend. § 87(2)(b)’s friend affirmed such to PO Burdeynny. PO Burdeynny then told § 87(2)(b) “Alright. Get out of the crosswalk – you can’t stay in the crosswalk.” § 87(2)(b) pulled his vehicle in front of a fire hydrant near the intersection and continued to talk to his friend from inside of his vehicle. Within moments, PO Burdeynny made a U-turn, pulled his vehicle up behind § 87(2)(b)’s, and used the loudspeaker to yell, “You can’t park on the johnny pump!” twice. § 87(2)(b) looked out the window while PO Burdeynny pulled up beside § 87(2)(b)’s vehicle. § 87(2)(b) said, “I’m not even getting out of my car. I’m just having a conversation. I’m sitting in my car; my car is in drive.” PO Burdeynny responded, “I said you can’t fucking sit on the johnny pump.” § 87(2)(b) then moved his vehicle from in front of the fire hydrant to a street parking spot in front of the Doctor Green Playground on the southwest corner of Sutter Avenue and Mother Gaston Boulevard. As he did so, he saw PO Burdeynny circle his vehicle around a nearby parking lot loop before passing § 87(2)(b) once more, at which point § 87(2)(b) approached the police vehicle, asking, “What was that all about?” PO Burdeynny replied through the police vehicle window, “I said you can’t fucking sit on the johnny pump.”

PO Burdeynny testified (BR 02) that he observed a dark sedan double-parked in the intersection of Sutter Avenue and Osborn Street. The dark sedan blocked a lane of traffic. The driver of the vehicle, § 87(2)(b) talked with an individual who stood in the street. PO Burdeynny, approached from the opposite direction on Sutter Avenue, honked his vehicle’s siren and waved his hand to indicate to § 87(2)(b) to keep moving. PO Burdeynny also said, “Move” but did not know if § 87(2)(b) heard him. In response, § 87(2)(b) and the individual standing in the street started cursing

at PO Burdeynny, saying the following: “You blue and white can’t do anything;” “Take off your uniform;” “You white piece of shit;” “I’m gonna fuck you up.” PO Burdeynny again told § 87(2)(b) to move his vehicle and honked his vehicle horn. Within seconds, § 87(2)(b) moved his vehicle and parked a few feet away in front of a fire hydrant. PO Burdeynny’s assignment consisted of circling the Langston Hughes NYCHA development, which consisted of only three buildings off Sutter Avenue. Thus, PO Burdeynny circled the development and returned to Sutter Avenue to see that § 87(2)(b) had remained with his vehicle stopped in front of a fire hydrant and blocking the eastbound lane of traffic. PO Burdeynny honked at § 87(2)(b) and § 87(2)(b) moved his vehicle off the fire hydrant. PO Burdeynny did not remember if he gave any verbal commands to § 87(2)(b). PO Burdeynny did not ever say to § 87(2)(b) “You can’t fucking sit on the johnny pump.” PO Burdeynny did not know the meaning of “johnny pump” and was unaware that it was a colloquialism for a fire hydrant. PO Burdeynny did not use any profanity towards § 87(2)(b) during this incident.

PO Jailall, PO Burdeynny’s partner, testified (BR 03) that PO Burdeynny observed a double-parked vehicle on Osborn Street that obstructed traffic. The vehicle was on the opposite side of the street from PO Jailall’s marked vehicle, approximately 20-40 feet away. PO Jailall did not further recall the location of the vehicle, including whether it was double-parked in a crosswalk or in front of a fire hydrant. PO Burdeynny exited the vehicle and approached § 87(2)(b). PO Jailall sat inside his marked vehicle while PO Burdeynny approached the driver. PO Jailall did not remember if the windows of his vehicle were up or down as PO Burdeynny approached. PO Jailall could not hear most of what was said between § 87(2)(b) and PO Burdeynny. PO Burdeynny ordered § 87(2)(b) to move his vehicle; PO Jailall did not remember how many times PO Burdeynny made such an order. § 87(2)(b) got verbally combative towards PO Burdeynny though PO Jailall did not recall any specific statements. § 87(2)(b) also got out of his vehicle at this point. PO Jailall did not hear PO Burdeynny say to § 87(2)(b) “You can’t fucking sit on the johnny pump.”

Neither PO Burdeynny’s nor PO Jailall’s activations captured this interaction as their cameras were activated moments after this point, upon exiting their vehicle (BR 04-05).

§ 87(2)(g)

As such, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation (B) Abuse of Authority: Police Officer Volodymyr Burdeynny questioned § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Volodymyr Burdeynny refused to provide his name to § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Volodymyr Burdeynny refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) said that, after PO Burdeynny allegedly said, “You can’t fucking sit on the johnny pump,” § 87(2)(b) said to PO Burdeynny, “Give me your badge number and name.” PO Burdeynny allegedly did not respond to this request. PO Burdeynny instead said to § 87(2)(b) “Give me your ID and ID number.” § 87(2)(b) allegedly never received PO Burdeynny’s name and shield number. § 87(2)(b) then went to get his ID from his car, but PO Burdeynny returned to his vehicle.

PO Burdeynny’s BWC activation (BR 04) shows § 87(2)(b) standing in the middle of the westbound lane of traffic on Sutter Avenue at the 00:30 timestamp. There is no crosswalk where § 87(2)(b) stands. PO Burdeynny, at the same time, stands in the middle of Sutter Avenue with his marked SUV behind him in the eastbound traffic lane. PO Burdeynny says to § 87(2)(b) between the 00:31 and 00:43 timestamps, “So give me your ID,” “Let me have your ID,” and “I need your ID.” In response, § 87(2)(b) says, “My ID is in my car,” and “I’m going over to my car right now.” After this, PO Burdeynny steps back into his marked SUV and deactivates his BWC.

Between the 00:34 and 00:40 timestamps of PO Burdeynny’s BWC activation, § 87(2)(b) stands in the middle of the westbound lane of traffic on Sutter Avenue and asks PO Burdeynny,

who stands in the street outside of his marked SUV, “What’s your badge number?” § 87(2)(b) also holds his phone in front of him at chest level. PO Burdeynny replies, “14915, 14915, PO Burdeynny.” § 87(2)(b) replies, “Thank you” and PO Burdeynny reenters his vehicle.

PO Burdeynny testified that he asked § 87(2)(b) for his ID because PO Burdeynny wanted to write § 87(2)(b) a summons for obstructing vehicular traffic. § 87(2)(b) said that he did not have his ID on him and PO Burdeynny told him to go get it. PO Burdeynny testified that § 87(2)(b) was free to leave during this interaction. Ultimately, PO Burdeynny testified that he never pursued § 87(2)(b) to get his ID and used his discretion to not issue any summons.

PO Burdeynny testified that he believed that § 87(2)(b) took a photograph of his shield, given how § 87(2)(b) was holding his phone.

Per Criminal Procedure Law 140.10 (BR 06), “a police officer may arrest a person for any offense when he or she has reasonable cause to believe that such person has committed such offense in his or her presence.”

Per Vehicle and Traffic Law § 1152 (BR 07), every pedestrian crossing a roadway at any point other than within a marked crosswalk shall yield the right of way to all vehicles upon the roadway.

Per Penal Law 240.20 (BR 08), “a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he obstructs vehicular or pedestrian traffic.”

Per Patrol Guide Procedure 203-09 (BR 09), officers must courteously and clearly state their ranks, names, and shield numbers to anyone who requests them to do so.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **exonerated**.

§ 87(2)(g)

it is recommended that **Allegations C and D** be closed as **unfounded**.

Allegation (E) Discourtesy: Police Officer Volodymyr Burdeynny spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) said that, after PO Burdeynny directed him to go get his ID, § 87(2)(b) procured it from his vehicle and approached PO Burdeynny while he sat inside his marked SUV. PO Burdeynny looked at § 87(2)(b) said “fuck you,” and drove off.

PO Burdeynny testified that he did not believe he interacted with § 87(2)(b) again after he asked § 87(2)(b) for his ID. PO Burdeynny testified that he did not say “fuck you” to § 87(2)(b)

PO Jailall testified that he did not ever hear PO Burdeynny say “fuck you” to § 87(2)(b)

Neither PO Burdeynny’s nor PO Jailall’s BWC activation showed this alleged portion of the incident as the officers disengaged their cameras upon reentering their vehicle.

§ 87(2)(g)

As such, it is recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation (F) Discourtesy: Police Officer Volodymyr Burdeynny gestured discourteously toward

§ 87(2)(b)

§ 87(2)(b) said that minutes later, he stood on the sidewalk on Sutter Avenue and flagged PO Burdeynny down, who was driving eastbound on the street in his vehicle. § 87(2)(b) again asked for PO Burdeynny’s shield number. In response, PO Burdeynny raised his middle finger and laughed at § 87(2)(b) before driving away again.

PO Burdeynny testified that he never saw § 87(2)(b) after the interaction discussed in

Allegations B-E. PO Burdeynny never raised his middle finger at § 87(2)(b) in response to a request for his shield number.

PO Jailall testified that he never saw PO Burdeynny raise a middle finger at § 87(2)(b) in response to a request for his shield number.

Neither PO Burdeynny's nor PO Jailall's BWC activation showed this alleged portion of the incident as their cameras were disengaged upon returning to their vehicle.

§ 87(2)(g)

§ 87(2)(g), it is recommended that **Allegation F** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two of CCRB complaints and has been named as a victim in seven allegations (BR 10):
 - § 87(2)(b)
 - § 87(2)(b)
- PO Burdeynny has been a member of service for seven and has been a subject in nine CCRB complaints and 34 allegations, of which one was substantiated.:
 - 201801245 involved a substantiated allegation of a vehicle search against PO Burdeynny. The Board recommended Command Discipline A and the NYPD imposed Formalized Training.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of May 25, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (BR 11).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 14

Investigator:	<u>Ethan C. Waterman</u>	<u>Inv. Ethan Waterman</u>	<u>February 10, 2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date